

**SECOND ADDENDUM TO THE DEVELOPMENT AGREEMENT AND
RESTATEMENT OF FIRST ADDENDUM TO THE DEVELOPMENT AGREEMENT**

THIS SECOND ADDENDUM TO THE DEVELOPMENT AGREEMENT AND RESTATEMENT OF FIRST ADDENDUM TO THE DEVELOPMENT AGREEMENT (the “Second Addendum”) is entered into this _____ day of _____, 2024, by and between the City of South Miami (the “City”), Maestra Sunset, LLC, a Florida limited liability company (the “Maestra” or “Developer”), Alta Sunset LLC (“Alta Sunset”) and Sunset Miami Investments., Inc, a Florida corporation (the “Owner”). The City, Developer, Alta Sunset and Owner are collectively addressed as the “Parties.”

WITNESSETH:

WHEREAS, the Owner is the property owner of the property located at 6075 SW 72 Street, South Miami, Florida, as described in Exhibit “A” (the “Property”), and previously entered into a long-term ground lease for the Property (the “Ground Lease”) with Alta Sunset, to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 074-18-15107 (the “Previous Approval”), which Ground Lease is still in effect as of the date of this Second Addendum; and

WHEREAS, pursuant to Section 20-8.9(C) of the Land Development Code (the “LDC”), a Development Agreement is required in connection with a Large Scale Development approval with respect to the Property which grants certain assurances regarding the construction, operation and maintenance of the proposed Project; and

WHEREAS, in furtherance of the Previous Approval and consistent with LDC requirements, Alta Sunset entered into a Development Agreement dated September 13, 2018 (the “Alta Development Agreement”) with the City that was approved by Resolution No. 168-18-15201; and recorded 27 in Official Records Book 31141 at Page 4597 of the Public Records of Miami-Dade County, Florida; and

WHEREAS, Alta Sunset entered into an agreement to sell and assign its interests in the Ground Lease to the Maestra; and

WHEREAS, Alta Sunset, as Seller and Maestra, as Buyer, are parties to that certain Purchase and Sale Agreement dated March 8, 2021, as amended by that certain (i) First Amendment to Purchase and Sale Agreement dated December 28, 2021, (ii) Second Amendment to Purchase and Sale Agreement dated December 29, 2022, (iii) Third Amendment to Purchase and Sale Agreement dated August 4, 2023, (iv) Fourth Amendment to Purchase and Sale Agreement dated September 11, 2023, (v) Fifth Amendment to Purchase and Sale Agreement dated November 25, 2023, and (vi) Sixth Amendment to Purchase and Sale Agreement dated on or about the date hereof (collectively, the “Purchase Agreement”); and

WHEREAS, Owner, Alta Sunset and Maestra have agreed to develop the Property pursuant to a Special Exception for a Large Scale Development approved by Resolution No. 118-2215871 (the “Maestra Sunset Approval”) for a project consisting of up to 316 residential units,

3,676 square feet of retail space, 1,353 square feet of leasing office space (collectively, the "Project"); and

WHEREAS, Maestra is the owner of the Maestra Sunset Approval rights; and

WHEREAS, on April 4, 2023, the City Commission authorized the City Manager to enter into a new Development Agreement with the Alta Sunset, Maestra and the Owner memorializing the terms and conditions of the Project's approvals through a new Development Agreement (the "Maestra Sunset Development Agreement"), as evidenced by Resolution No. 035-23-15969; and

WHEREAS, on August 31, 2023 the Parties executed an Addendum to the Development Agreement (the "First Addendum") to allow Alta Sunset and Maestra Sunset to submit, process, and prepare all applications, plans, specifications, permits and approvals, and related information and documents as may be required prior to the Developer closing on Alta Sunset's interest in the Ground Lease; and

WHEREAS, on November 7, 2023, the Environmental Review and Preservation Board ("ERPB") granted final approval of the Project; and

WHEREAS, on February 29, 2024, the City issued building permit number BCB23-1065 for vertical construction of the Project (the "Development Permit"); and

WHEREAS, Paragraph 1 of the [first] Addendum provided for an automatic termination of all administrative or public hearing approvals granting development rights under the Development Agreement in the event the Purchase Agreement is terminated for any reason, including by mutual consent of the parties or by judicial order; and

WHEREAS, the Purchase Agreement is in full force and effect; and

WHEREAS, the Parties desire to enter into a second addendum to the Maestra Sunset Development Agreement to enable Alta Sunset and Maestra Sunset, and/or their respective successors or assigns, to proceed with financing, construction, operation and maintenance of the proposed Project. Said assignments may necessitate the termination of the Purchase Agreement but in no event will said assignment(s) extinguish the obligations under the Development Agreement by Alta Sunset's or Maestra Sunset's successor or assign.

NOW, THEREFORE, for the covenants and considerations herein contained and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. **Recitals**: The above recitals are true and correct, deemed to be findings, and are incorporated herein and made a part hereof.
2. **Effect**: This Second Addendum amends and restates the First Addendum, and replaces the First Addendum in its entirety such that the First Addendum has no force or effect.

3. **Assumption of the Duties and Responsibilities, Assignment of Interests:** Alta Sunset and Maestra, and their respective successors or assigns, agree to assume all duties and responsibilities of the Developer under the Maestra Sunset Development Agreement, as amended. In the event Alta Sunset and/or Maestra Sunset assigns or transfers any of their respective interests in the Property, the assignor party shall notify the City, in writing, of said assignment or transfer within 30 days of such assignment or transfer. In the event Alta Sunset or Maestra Sunset fail to timely notify the City of an assignment of their interests in the Property, the City may, in its sole and absolute discretion, terminate, rescind, and revoke the Previous Approval, Maestra Sunset Approval, Alta Development Agreement, and Maestra Sunset Development Agreement, and reserves the right to consider and enact legislation effectuating and memorializing the termination, rescission, and revocation of the Previous Approval, Maestra Sunset Approval, Alta Development Agreement, and Maestra Sunset Development Agreement, and the Owner, Developer, and Alta Sunset waive any objection to any City action consistent with paragraph 1.
4. **No Other Modification:** Except as specifically modified by this Second Addendum under paragraph 1, each and every other term and condition of the Maestra Sunset Development Agreement shall remain unchanged and in full force and effect without modification.

IN WITNESS WHEREOF, the Parties have executed this Second Addendum to the Maestra Sunset Development Agreement as of the date first written above.

**City of South Miami, Florida,
a municipal corporation of the State of Florida**

By: _____
Genaro "Chip" Iglesias, City Manager

ATTEST:

Nkenga A. Payne, CMC, City Clerk

Approved as to Form, Language, Legality,
and Execution thereof:

Tony Recio, City Attorney

WITNESSES:

**ALTA SUNSET, LLC,
a Florida limited liability company**

By: _____

By: _____

Print Name: _____

Print Name: _____

By: _____

Title: _____

Print Name: _____

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ day of _____, 2023, by _____, as _____ of Alta Sunset, LLC, a Florida limited liability company. He/She is ☐ personally known to me or ☐ who has produced _____ as identification.

[NOTARIAL SEAL]

Print Name: _____
Notary Public, State of Florida
Commission #: _____
My Commission Expires: _____

WITNESSES:

**MAESTRA SUNSET, LLC,
a Florida limited liability company**

By: _____

By: _____

Print Name: _____

Print Name: _____

By: _____

Title: _____

Print Name: _____

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization, this _____ day of _____, 2023, by _____, as _____ of Maestra Sunset, LLC, a Florida limited liability company. He/She is ☐ personally known to me or ☐ who has produced _____ as identification.

[NOTARIAL SEAL]

Print Name: _____
Notary Public, State of Florida
Commission #: _____
My Commission Expires: _____

WITNESSES:

By: Leah Angel
Print Name: Leah Angel
By: Cristina Padrino
Print Name: Cristina Padrino

OWNER:

**SUNSET MIAMI INVESTMENTS, INC.,
a Florida for profit corporation**

By: Teresa Sordo
Print Name: Teresa Sordo
Title: Pres

STATE OF FLORIDA)
) ss:
COUNTY OF MIAMI-DADE)

The foregoing instrument was acknowledged before me by means of ☒ physical presence or ☐ online notarization, this 20th day of May, 2023, by Teresa Sordo, as President of Sunset Miami Investments, Inc., a Florida for profit corporation. He/She is ☒ personally known to me or ☐ who has produced _____ as identification.



Cristina Padrino
Print Name: Cristina Padrino
Notary Public, State of Florida
Commission #: HH 429986
My Commission Expires: 12-4-2027

EXHIBIT "A"

Legal Description

ALL OF TRACT A, LESS THE EAST 118 FEET OF THE NORTH 129.07 FEET, IN BLOCK 1, AND LOT 3, IN BLOCK 1, OF "ROSSWOOD", ACCORDING TO THE PLAT THEREOF, AS RECORDED IN PLAT BOOK 13, AT PAGE 62 IN THE PUBLIC RECORDS OF MIAMI-DADE COUNTY, FLORIDA, LESS THE SOUTH 25 FEET OF SAID BLOCK 1.